Showing contexts for: **divorce petition** in Sou. Ramkuvar Madanlal Atale vs Madanlal Surajkaran Atale on 21 August, 1974

Context size: Small | Current | Large | Larger

> In the next paragraph of his judgment the learned Judge proceeded to refer to the joint compromise purshis filed by the parties and stated as follows:

> Relying upon this joint purshis also, I have recorded my findings on issues Nos. 2 and 3....

> He then passed a decree for desertion in favour of the husband and directed payment of alimony by him to his wife, at the agreed rate.

2. After the expiry of the statutory period of two years provided in Section 13(1A)(i) of the Hindu Marriage Act, 1955, the husband thereafter presented, on September 11, 1968, a **petition** for **divorce**, being **petition** No. 118 of 1968, on the ground that there was no resumption of cohabitation between the parties for the statutory period after the passing of the decree for judicial separation on September 5, 1966. In her written statement, the wife contended that no decree for **divorce** could be passed because the decree for judicial separation had been passed on the basis of consent terms and was, therefore, illegal and not binding on her. The learned trial Judge held that the decree in Marriage **Petition** No. 5 of 1966 was not a compromise decree, and he, therefore granted the decree for **divorce** prayed for by the husband. On an appeal by the wife to the District Court at Poona, being Civil Appeal No. 982 of 1969, it was held that the decree for judicial separation in Marriage **Petition** No. 5 of 1966 was not unlawful and that the proper remedy for the respondent was to appeal from it, which she had not done, and the said appeal No. 982 of 1969 was, therefore, dismissed. The wife

thereafter filed a Second Appeal to this Court, and it came up before my brother Bhasme who referred it to a Division Bench. That is how this appeal came up before my brothers Bhole and Mukhi who, after hearing the same, delivered differing judgments.

> 26. Continuing the narrative, it would appear that on September 11, 1968, that is to say, within the three or four days after the statutory period of two years, the **petition**er filed a **petition** for **divorce** and this is Marriage **Petition** No. 118 of 1968. This **petition** for **divorce** was purported to have been made under Section 13(viii) of the Hindu Marriage Act, 1955, but it is obvious that the correct provision of law would be Section 13(1A)(i) because by that time Section 13 of the Hindu Marriage Act, 1955, had already been amended.

> 30. I have already set out the consent purshis as filed and the order of the Court made thereupon. The respondent also sought to suggest that the **petition**er was taking advantage of his own wrong in filing the **petition** for **divorce** and, therefore, the **divorce** should be refused to him. Obviously, this has reference to the provisions contained in Section 23 of the Hindu Marriage Act, 1955. In the alternative the respondent asked for alimony at the rate of Rs. 100 per month.

> 31. The learned trial Judge hearing the **petition** for **divorce** held that the decree in Marriage **Petition** No. 5 of 1966 was not a compromise decree; that there was no collusion between the parties; and that the allegation of fraud in arriving at the consent terms was not proved. The learned trial Judge hearing the **petition** for **divorce** also held that the **petition**er as the husband was not in any way taking advantage of his own wrong.

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138. Now, if the decree purported to have been passed by the trial Court in Marriage **Petition** No. 5 of 1966 was a nullity then the **petition**er had no ground available to him under Section 13(1A)(i) of the Act when he filed the **petition** for **divorce** in a Marriage **Petition** No. 118 of 1968 apart from the ground that the respondent was of

unsound mind. That ground, as I have stated, ho gave up. The **petition** for **divorce** was, therefore, without any statutory ground available to the **petition**er and could not, therefore, survive.